

HOUSE BILL 2351

By Littleton

AN ACT to amend Tennessee Code Annotated, Title 63,
Chapter 7, relative to medication aides.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 63-7-127(e), is amended by deleting the subsection and substituting:

(e) To be eligible to receive a medication aide certificate, an applicant must:

(1) Be at least eighteen (18) years of age;

(2) Have completed the twelfth grade or its equivalent, or have successfully passed the test for and received a high school equivalency credential approved by the state board of education;

(3) Have successfully completed a course of instruction provided by a training program approved by the board under subsection (i);

(4) Have passed a standardized knowledge and skill examination within a maximum of two (2) attempts; and

(5) Meet one (1) of the following criteria:

(A) Have practiced as a certified nurse aide for at least one (1) year in a nursing home, assisted-care living facility, or a program for all-inclusive care for the elderly (PACE), as defined in § 56-2-121(b);

(B) Have practiced as a licensed occupational therapy assistant for at least one (1) year in a nursing home, assisted-care living facility, or a PACE, as defined in § 56-2-121(b); or

(C) Be a student in good standing enrolled in an approved school of nursing, as defined by the board of nursing.

SECTION 2. Tennessee Code Annotated, Section 63-7-127, is amended by deleting subsection (f) and substituting:

(f)

(1) If an applicant meets the requirements of subsection (e), then the board shall issue a medication aide certificate to the applicant.

(2) Notwithstanding subsection (e), the board shall issue a medication aide certificate to an applicant meeting the following alternative criteria for nursing school students:

(A) The applicant is a student in good standing enrolled in an approved school of nursing, as defined by the board of nursing; and

(B) Has completed courses providing education regarding the basic nursing fundamentals and foundations, basic pharmacology, and medication administration portions of the nursing program with a sufficient passing grade.

SECTION 3. Tennessee Code Annotated, Section 63-7-127(i)(2), is amended by adding the following as a new subdivision:

(C) Arrangements to ensure a class of students completes the program in a minimum of fourteen (14) days but a maximum of ninety (90) days from the start date of the class.

SECTION 4. Tennessee Code Annotated, Section 63-7-127(l), is amended by adding the following as a new subdivision:

(3) Any rules adopted regarding the evaluation of a program's overall test taker examination pass rate must base the calculation on the number of students who successfully pass the standardized knowledge and skill examination within two (2)

attempts regardless of whether a candidate passes on the candidate's first or second attempt.

SECTION 5. Tennessee Code Annotated, Section 63-7-127, is amended by adding the following as a new subsection:

(o)

(1) The board, at its discretion, may grant certification to a person as a medication aide if:

(A) The person is certified, licensed, or registered and in good standing in another state as a medication aide, or an equivalent title; and

(B) The requirements for approval in such other state are as stringent as required by this section.

(2) The board is authorized to adopt rules regarding the administrative process for an individual to obtain certification as a medication aide pursuant to this subsection (o). Such rules may delegate to administrative staff of the board of nursing the authority to approve an application from a person meeting the requirements of this subsection (o). The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 6. For the purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.